

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

6. MACHAELA MELROSE V. SHAWN SANTELIO

23FL1121

On January 29, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. He filed his Income and Expense Declaration concurrently therewith. All required documents, with the exception of a blank FL-320, were served on January 29th.

The parties attended Child Custody Recommending Counseling (CCRC) on March 5, 2026 and were able to reach agreements on all issues. A report codifying those agreements was prepared on March 5th and served on the parties on March 6th.

Petitioner filed and served her Responsive Declaration to Request for Order on April 17th.

Respondent is requesting a week on/week off schedule and he asks that Petitioner not have any phone calls with the child during his parenting time. He further asks that the child not attend daycare during his parenting time.

Petitioner asks the court not to adopt the agreements contained in the CCRC report. She states that a portion of the agreements were never discussed. She asks that the parties be re-referred to CCRC. Alternatively, she asks the court to award her primary physical custody and order visits for Respondent to occur every other weekend.

While Petitioner maintains that the agreements contained in the CCRC report were not, in fact, agreed upon, the court has reviewed them and does find them to be in the best interests of the minor. As such, the provisions of the March 5, 2026 CCRC report identified as agreements are hereby adopted as the orders of the court.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #6: WHILE PETITIONER MAINTAINS THAT THE AGREEMENTS CONTAINED IN THE CCRC REPORT WERE NOT, IN FACT, AGREED UPON, THE COURT HAS REVIEWED THEM AND DOES FIND THEM TO BE IN THE BEST INTERESTS OF THE MINOR. AS SUCH, THE PROVISIONS OF THE MARCH 5, 2026 CCRC REPORT IDENTIFIED AS AGREEMENTS ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE

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COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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8. GINNY ANNE SILVER V. MICHAEL JAMES SILVER

24FL0997

On February 4, 2026, Respondent filed a Request for Order (RFO) seeking to set aside the Judgment and requesting custody and visitation orders, child support, and property control orders. The parties were referred to Child Custody Recommending Counseling (CCRC) and a review hearing was set for the present date. Respondent did not file an Income and Expense Declaration. The RFO was electronically served on Petitioner only on February 5th, however this is a post-judgment request and therefore it was required to be personally served in accordance with Family Code § 215. Additionally, Respondent failed to serve the CCRC referral form, the Notice of Tentative Ruling and the required blank FL-320. Also, the Department of Child Support Services (DCSS) was not served even though they are a party to the case.

Despite the fact that there is no Proof of Service for DCSS, DCSS did file a Responsive Declaration to Request for Order on February 25th thereby waiving any defect in service.

Neither party appeared at the scheduled CCRC appointment.

Respondent filed his Income and Expense Declaration on April 2, 2026 and again on April 6th. The court finds this to be late filed. “For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration.” Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01.

Respondent filed another RFO on April 8, 2026. This time, the request was filed ex parte. It was denied on an ex parte basis but the court set the RFO to join with the already scheduled hearing date. It was electronically served on April 7th, again in violation of Section 215. Petitioner filed a Responsive Declaration to Request for Order the same day.

Petitioner filed her Responsive Declaration to Request for Order on April 13th objecting to the RFO as it was not properly served.

The RFOs are dropped from calendar due to the multiple defects in service and failure to timely file the required Income and Expense Declaration.

TENTATIVE RULING #8: BOTH RFOS ARE DROPPED FROM CALENDAR DUE TO THE NUMEROUS DEFECTS IN SERVICE.